DE CAPELLANIS CANTORIBUS CHORALIBUS BASILICAE L I B E R I AN AE

Benedict XV · Latin

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BENEDICTUS EPISCOPUS SERVUS SERVORUM DEI AD PERPETUAM REI MEMORIAM

Quum iampridem haud Nos lateat Venerabilem Fratrem N o s t r u m C a r d i n a l e m A r c h i p r e s b y t e r u m c u m C a n o n i c o r u m Col- legio N o s t r a e P a t r i a r c h a l i s Basilicae L i b e r i a n a e p r o suo reli- gionis s t u d i o c o n t e n d e r e , u t i n m a x i m o n o b i l i s s i m o q u e t e m p l o D e i p a r a e d i g n e s a c r o r u m p e r f u n c t i o f i a t , t u m l i b e n t e r certiores facti s u m u s p r a e c i p u a e e i s d e m esse c u r a e , u t g r e g o r i a n i concen- t u s , a d n a t i v a m v e n u s t a t e m revocati, pie sciteque a d h i b e a n t u r s e c u n d u m ea q u a e Decessor N o s t e r s a n c t a e m e m o r i a e P i u s X Motu Proprio, die x x n n o v e m b r i s MDCCCCIII edito, s a p i e n t i s s i m e p r a e s c r i p s i t . C u i u s rei c a u s a p e r g r a t u m Nobis est, suffragium a t q u e a d i u m e n t u m apostolicae a u c t o r i t a t i s iis p r a e s t a r e c u p i e n - t i b u s ; eo vel m a g i s q u o d m a g n a m Dei P a r e n t e m , q u a e ibi s a n c - t i s s i m e colitur, ut a p u e r i s s i n g u l a r i s e m p e r p i e t a t e p r o s e q u u t i s u m u s , i t a pontificio a l i q u o p i e t a t i s h u i u s t e s t i m o n i o o r n a r e studemus.

I t a q u e e o r u m d e m satisfacientes p r e c i b u s , q u a e q u i d e m e o s p e c t a n t u t m u n u s c a n e n d i i n Ecclesia clericis p r o p r i u m m a n e a t , d e C a p e l l a n i s seu C a n t o r i b u s C h o r a l i b u s L i b e r i a n a e Basilicae h a e c s t a t u i m u s et p r a e c i p i m u s : I. - C a n t o r e s c h o r a l e s Basilicae L i b e r i a n a e p o s t h a c sacer- d o t e s sint, iique n o n s o l u m m o r u m p r o b i t a t e p r a e d i t i , sed e t i a m , q u o n i a m c h o r i c o n c e n t u m m o d e r a r i p r a e c i n e n d o debent, e t voce p o l l e a n t e t c a n t u s g r e g o r i a n i p r a e s t e n t peritia, q u a e p e r i t i a di- p l o m a t e Pontificii U r b i s I n s t i t u t i m u s i c a e a l t i u s excolendae, v e l alio e i u s d e m m o d i a u c t o r i t a t i s t e s t i m o n i o c o m p r o b e t u r . I I . - Q u a t t u o r e beneficiis L i b e r i a n a e Basilicae, q u a e p r i m a v a c a r e continget, Apostolicae Sedi r e s e r v e n t u r , iis s u b i n d e sa- c e r d o t i b u s conferenda, q u o s a d c a n t o r i s m u n u s idoneos, u t di- c t u m est, esse constiterit. L i b e r i a n i a u t e m clerici beneficiarii, si q u i d e m s i n t i n ceteris, i d e s t voce, p e r i t i a e t d i p l o m a t e p a r e s , externis anteponantur. I I I . - L i b e r i a n o C a n o n i c o r u m Collegio q u a t t u o r c a n t o r e s chori, q u a l e s dicti sunt, a s s u m e r e i a m n u n c liceat, q u i b u s p o s t e a beneficium conf e r e t u r ; i n t e r e a v e r o u s q u e d u m beneficio c a r e - b u n t , a t q u e e t i a m , q u u m illud acceperint, q u a m d i u p r a e s e n t e m ex suo beneficio n o n p e r c i p i a n t u t i l i t a t e m , eis et A p o s t o l i c a Se- des et Mensa Capitularis, u n d e s u s t e n t a r e h o n e s t e v i t a m possint, aequis portionibus suppeditabunt. I V . - C a n t o r beneficiarius qui, sive a e t a t e sive v a l e t u d i n e sive a l i a c a u s a , iudicio t r i u m rei m u s i c a e p e r i t o r u m , s u u m ca- n e n d i m u n u s i a m obire n o n possit, beneficiarius m a n e b i t , sed. beneficium e i u s esse affectum d e s i n e t . In e i u s l o c u m a l i u s sacerdos r e n u n t i e t u r cantor, iis c o n d i t i o n i b u s q u a e s u p r a d i c t a e sunt. V. - Beneficiarii c a n t o r e s t u m e t i a m h a b e a n t u r p r a e s e n t e s in choro, q u u m in alia p a r t e Basilicae suo m u n e r e f u n g e n t u r . Qui, u t p o t e beneficiarii, i i s d e m i u r i b u s , privilegiis, r e d i t i b u s , d i s t r i b u t i o n i b u s f r u e n t u r , q u i b u s ceteri beneficiarii Basilicae Liberianae, eisdemque Constitutionibus parebunt. P r o peculiari a u t e m i p s o r u m officio, p e c u l i a r i b u s t e n e a n t u r legibus, q u a s Nos,

et iam probavimus et hic ratas habemus, derogantes Constitu- tionibus Liberianis ex ea praesertim parte quatenus servitium c h o r i p e r tertiariain beneficiariis p r a e c i p i u n t . Hi e n i m benefi- ciarii c a n t o r e s a l t a r i s q u i d e m servitio e x e m p t i e r u n t , sed servire choro p e r mediariam d e b e b u n t ; q u a m m a i o r e m i p s o r u m o p e r a m , i t e m q u e o p e r a m q u a m c a n t o r i b u s Capella© m u s i c a e n a v a r i n t , C a p i t u l u m d e r e d i t i b u s e i u s d e m Capellae r e m u n e r a n d a m cura- bit. H i v e r o q u u m p r a e s e n t e s officio s e c u n d u m p r o p r i a s leges a d f u e r i n t , f r u e n t u r o m n i b u s d i s t r i b u t i o n i b u s c o t i d i a n i s , com- m u n i b u s , m a n u a l i b u s , inter praesentes, p o e n i s p e c u n i a r i i s q u a e v u l g o f a l i a e d i c u n t u r , a e q u e ac si s e r v i t i u m t e r t i a r i a e in c h o r o , u t ceteri, obierint. S p e m b o n a m f o v e m u s f u t u r u m , u t q u o t q u o t beneficiarii can- t o r i s i n t a m a u g u s t a t a m q u e magnifica V i r g i n i s A e d e suscepe- r i n t m u n u s , e t c o n t i n e n t e s in choro et c o n c e n t u m Capellae m u - sicae a d i u v a n t e s , Apostolicae Sedis d e c a n t u l i t u r g i c o p r a e s c r i - ptionibus studiose semper obtempèrent. Meminerint excelsum a c p r o r s u s d i g n u m a n g e l i s s e inivisse m u n u s , a t q u e o m n e m d e n t o p e r a m , u t c a n t u s sacer t a l i s , q u o a d possit, e x s i s t a t , q u a l e m Dei maiestas, honor Virginis, pietas christiani populi requirit. Q u a e a u t e m h i c a Nobis c o n s t i t u t a s u n t , ea L i b e r i a n o C a n o - n i c o r u m Collegio, s u b a u s p i c i o C a r d i n a l i s A r c h i p r e s b y t e r i

, exse- q u e n d a c o m m i t t i m u s ; e a d e m q u e v a l i d a , f i r m a s e m p e r fore edi- cimus, non obstantibus contrariis quibusvis Constitutionibus Apostolicis, e t i a m s p e c i a l i s s i m a m e n t i o n e d i g n i s . D a t u m Romae apud S. Petrum, anno Incarnationis Domi- n i c a e m i l l e s i m o n o n g e n t e s i m o d e c i m o q u i n t o , die x i m e n s i s iulii, Pontificatus Nostri anno primo.

P. CARD. GASPARRI V. CARD. VANNUTELLI a Secretis Status. Datar ius.

Loco ïfc Plumbi VISA M. RIGGI, C. A., Not. 75 Beg. in Cane. Ap., K. —

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